

sub-section (1) or sub-section (2) shall not be less than a fine of two hundred and fifty rupees.

Comments

Section 142 provides for penalty for unauthorized sale or transfer of ticket.

Penal provision:

Penal provision is to be construed rigidly.

143. Prohibition for unauthorized carrying on of business of procuring and supplying of railway tickets:- (1) If any person, not being a railway servant or an agent authorized in this behalf;-

(a) carries on the business of procuring and supplying tickets for travel on a railway or for reserved accommodation for journey in a train; or

(b) purchases or sells or attempts to purchase or sell tickets with a view to carrying on any such business either by himself or by any other person,

he shall be punishable with imprisonment for a term which may extend to three years or with fine which may extend to ten thousand rupees, or with both, and shall also forfeit the tickets which he so procures, supplies, purchases, sells or attempts to purchase or sell:

Provided that in the absence of special and adequate reasons to the contrary to be mentioned in the judgment of the court, such punishment shall not be less than imprisonment for a term of one month or a fine of five thousand rupees.

(2) Whoever abets any offence punishable under this section shall, whether or not such offence is committed, be punishable with the same punishment as is provided for the offence.

Comments

Section 143 provides for penalty for unauthorized carrying on of business of procuring and supply of railway tickets.

144. Prohibition on hawking, etc. and begging:- (1) If any person canvasses for any custom or hawks or exposes for sale any article whatsoever in any railway carriage or upon any part of a railway, except under and in accordance with the terms and conditions of a licence granted by the railway